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Draft law for public discussion

Law of the Republic of Belarus on the the police

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Law of the Republic of Belarus on the the police

This Law defines the legal and organisational foundations of the activities of the police of the Republic of Belarus (hereinafter referred to as the police), establishes the duties and rights of the police and its officers, as well as guarantees of legal and social protection for police officers.

CHAPTER 1. GENERAL PROVISIONS

Article 1. Police

1. The police are a state law enforcement agency under the jurisdiction of the Ministry of Internal Affairs of the Republic of Belarus (hereinafter referred to as the Ministry of Internal Affairs), the duties of which include protecting human rights and fundamental freedoms, combating crime, and ensuring public order and safety.

2. The Police Department of the Ministry of Internal Affairs (hereinafter referred to as the Department) directly manages police activities.

Article 2. Tasks of the Police

The main tasks of the police are as follows:

protection of human rights and freedoms;

maintenance of public order and safety;

combating crime and other unlawful infringements;

providing urgent assistance to individuals in a helpless physical or psychological state, as well as to those affected by criminal acts, offenses, natural disasters, or other similar circumstances.

Article 3. Legal Foundations of Police Activities

The police carry out their activities in accordance with the Constitution of the Republic of Belarus, international treaties of the Republic of Belarus, this Law, and other legal regulatory acts.

Article 4. Fundamental Principles of Police Activities

The activities of the police are based on the principles of the rule of law, legality, humanism, transparency and openness, political neutrality, impartiality and non-discrimination, professionalism, and proportionality.

Article 5. International Cooperation of the Police

1. The police cooperate with law enforcement agencies of other states and international organisations in accordance with the international treaties and legislative acts of the Republic of Belarus.

2. Police officers may be sent to other states or international organisations as representatives of the police of the Republic of Belarus to ensure cooperation and coordination.

3. With their consent, police officers may participate in international operations aimed at maintaining peace and security.

Article 6. Interaction of the Police with State Authorities, Local Self-Government Bodies, Media, Civil Society, and Citizens

1. The police cooperate with state authorities, local self-government bodies, media, civil society, and citizens in accordance with this Law and other legal regulatory acts.

2. State authorities, other organisations and their officials are obliged, within their competence, to assist the police in fulfilling the duties assigned to them by this Law and other legislative acts.

3. Citizens may voluntarily assist the police, including on a confidential basis, in accordance with the procedure established by legislation.

4. The police promote legal education among the population and disseminate legal knowledge.

5. The police may establish media outlets to inform the public about measures for preventing crimes and other offenses and to fulfil other tasks related to police activities.

CHAPER 2. POLICE SYSTEM

Article 7. Police System

1. The police system consists of:

the Police Department;

territorial police authorities;

specialized police institutions;

other bodies and institutions established in accordance with the legislation of the Republic of Belarus.

2. Territorial police authorities include: district police commissariats, police commissariats of hramadas, inter-territorial police divisions, and police stations.

3. Specialized police institutions include:

institutions for training, retraining, and professional development of police officers;

police research institutions;

support institutions and divisions.

4. The police comprise the following units:

criminal police;

patrol police;

pre-trial investigation units;

security police;

special-purpose police.

5. The maximum staffing level of the police, the Regulations on the Police Department, and the Regulations on Police Service are approved by the Government of the Republic of Belarus.

6. The Department, territorial police authorities, specialized police institutions, as well as other bodies and institutions of the police system (hereinafter referred to as "police system bodies" unless specified otherwise), are legal entities and possess a seal with the image of the State Emblem of the Republic of Belarus and their official name.

Article 8. Main Powers of the Minister of Internal Affairs of the Republic of Belarus in Relation to the Police

The Minister of Internal Affairs of the Republic of Belarus (hereinafter referred to as the "Minister of Internal Affairs"):

ensures the development of state policy in the field of public safety and legal order, protection of human rights and freedoms, societal and state interests, and crime prevention, and supervises its implementation by the police;

provides legal regulation of police activities, agrees and submits to the Government of the Republic of Belarus draft laws and regulatory legal acts of the Government of the Republic of Belarus regarding police activities;

approves the structure and staffing schedule of police system bodies;

establishes, dissolves, and reorganizes police system bodies, approves their regulations (charters), and executes other powers related to managing state property objects within the sphere of responsibility of police;

ensures cooperation and coordination between police system bodies and other bodies and institutions subordinate to the Ministry of Internal Affairs;

ensures the management and use of databases and determines the procedure for information exchange between the Ministry of Internal Affairs, the police, and other state bodies and institutions;

performs other duties in accordance with this Law and other normative legal acts of the Republic of Belarus.

Article 9. Police Department of the Ministry of Internal Affairs

1. The Department is a state management body that heads the police system and carries out, within its competence, regulation and management in the field of prevention of crime and other unlawful infringements, protection of law and order, and ensuring public safety.

2. The Department:

ensures the fulfilment of police tasks;

supervises and coordinates the activities of police system bodies;

develops the overall action strategy and personnel policy of the police system bodies;

ensures the implemention of state programmes in police system bodies;

organises the execution of decisions made by the Department Director and control over their implementation.

3. The Director of the Department exercises direct management of police system bodies.

4. The Director of the Department is appointed and dismissed by the Government of the Republic of Belarus upon the recommendation of the Minister of Internal Affairs.

5. The Director has a first deputy and deputies.

6. The First Deputy Director and Deputy Directors are appointed and dismissed by the Minister of Internal Affairs upon the recommendation of the Department Director.

7. The Director and Deputy Directors of the Department may be citizens of the Republic of Belarus who:

meet the general requirements for entering the police service;

hold a higher legal education;

have at least seven years of experience in the legal field;

have at least five years of experience in managerial positions.

Article 10. Main Powers of the Director of the Department

The Director of the Department:

heads the police, directs its activities, and ensures the fulfillment of the tasks assigned to it;

within their competence, organizes and monitors the implementation of the provisions of the Constitution of the Republic of Belarus, international treaties, this Law, and other legislative acts related to police operations by the police;

submits proposals to the Minister of Internal Affairs related to the formation of state policy in the sphere of public safety, law and order, protection of human rights and freedoms, combating crime and other unlawful infringements;

under the established procedure, represents the police of the Republic of Belarus in relations with other state bodies, local self-government authorities, and other organizations within the Republic of Belarus and abroad;

reports to the Minister of Internal Affairs on the fulfillment of the tasks assigned to the police;

distributes responsibilities among their deputies;

issues orders and directives within their authority;

provides instructions, within their authority, that are mandatory for police officers and employees to follow;

approves regulations on the structural divisions of the Department;

in accordance with established procedures, recruits and dismisses personnel, appoints and dismisses employees of the Department from their positions;

makes decisions on incentives and disciplinary measures in accordance with established procedures;

submits recommendations on the presentation of state awards of the Republic of Belarus to police officers and employees of the Department;

assigns special police ranks in accordance with established procedures;

assigns civil servant grades in compliance with civil service legislation;

submits proposals to the Minister of Internal Affairs on the creation, reorganization, and dissolution of police system bodies;

ensures compliance with the established procedure for information exchange between the Ministry of Internal Affairs and the police;

makes decisions, as prescribed by law, on the allocation of budgetary funds managed by the police;

exercises other powers in accordance with the legislation.

Article 11. Territorial Police Authorities

1. Territorial police authorities operate, as a rule, within the territory of an administrative-territorial unit based on the regulations governing their organisation and functioning, as approved by the Director of the Department.

2. A two-tier system is established for territorial police authorities:

basic level – Hramada police commissariats and police stations;

regional level – police districts.

3. Police commissariats are established in each Hramada. The police commissariats of Hramadas are managed by police commissioners. In settlements that are not Hramada centres, police stations may be created as necessary, subordinated to the respective Hramada police commissariat.

4. Police districts are established by the Government of the Republic of Belarus upon the proposal of the Minister of Internal Affairs. Police districts are managed by district police commissariats, headed by district police commissioners.

5. District police commissioners and their deputies are appointed and dismissed by the Minister of Internal Affairs upon the proposal of the Director of the Department. Hramada police commissioners and their deputies are appointed and dismissed by the Director of the Department upon the proposal of district police commissioners.

6. Heads of structural divisions of territorial police authorities and their deputies, as well as heads of police stations and their deputies, are appointed and dismissed by the respective police commissioners.

7. A citizen of the Republic of Belarus may be appointed as the head or deputy head of a territorial police authority if they:

meet the general requirements for joining the police service;

hold a higher legal education;

have at least five years of experience in law enforcement.

8. The staffing schedules and budgets of territorial police authorities are approved by the respective police commissioner.

Article 12. Specialised Police Divisions

1. Specialised police divisions are established by the Minister of Internal Affairs, upon the proposal of the Director of the Department, to fulfil specific police functions.

2. Specialised divisions have general territorial jurisdiction, are established in line with the specifics of particular areas of activity, and report to the Director of the Department.

3. The structure and regulations governing the activities of specialised divisions are approved by the Ministry of Internal Affairs.

Article 13. Criminal Police

1. The Criminal Police is responsible for the prevention, detection, and suppression of crimes; identifying individuals involved in committing crimes; searching for accused persons whose whereabouts are unknown, individuals hiding from bodies conducting criminal proceedings, individuals evading punishment or other measues of criminal responsibility, missing persons and other individuals in cases specified by legislative acts; and identifying unidentified bodies.

2. The Criminal Police includes divisions for criminal investigation, combating economic crimes, drug control and countering human trafficking, countering cybercrime, forensic

and criminal expertise, as well as other divisions necessary for ensuring the activity of the Criminal Police.

3. The Criminal Police is part of the structure of the Department, as well as regional and basic-level territorial police authorities. Inter-territorial Criminal Police divisions may also be established by decision of the Minister of Internal Affairs.

4. Heads of the Criminal Police are appointed and dismissed in accordance with procedures determined by the Director of the Department.

Article 14. Patrol Police

1. The Patrol Police performs the following functions:

ensuring the personal and property safety of citizens;

ensuring road traffic safety;

maintaining public order and ensuring public safety;

preventing, detecting, and suppressing crimes and administrative offences;

participating, within its competence, in identifying individuals who have committed crimes, searching for accused persons whose whereabouts are unknown, and other individuals in cases specified by legislative acts;

identifying individuals subject to administrative liability, in accordance with the competence of the police; and

ensuring the detention of individuals in police temporary detention facilities.

2. The Patrol Police includes operational and duty services, the service of district police inspectors, juvenile affairs inspectorates, police patrol units, the state traffic inspection service, divisions for the detention of individuals who have committed crimes or administrative offences, and other divisions necessary for ensuring the activities of the patrol police.

3. The Patrol Police is part of the structure of the Department, as well as regional and basic-level territorial police authorities. Inter-territorial Patrol Police divisions may also be established by decision of the Minister of Internal Affairs.

4. Heads of the Patrol Police are appointed and dismissed in accordance with procedures determined by the Director of the Department.

Article 15. Pre-Trial Investigation Bodies

1. Pre-trial investigation divisions are responsible for:

verifying statements and reports about crimes;

conducting preliminary investigations of criminal cases.

2. Pre-trial investigation divisions are part of the structure of the Department, as well as regional and basic-level territorial police authorities. Inter-territorial pre-trial

investigation divisions may also be established by decision of the Minister of Internal Affairs.

3. Heads of pre-trial investigation divisions are appointed and dismissed in accordance with procedures determined by the Director of the Department.

Article 16. Security Police

1. The Security Police ensures public order at protected facilities, within patrol zones, and along patrol routes.

2. The functions of the Security Police include:

protection of senior state officials;

security of diplomatic missions;

safeguarding important and particularly critical state facilities;

escorting particularly valuable and highly dangerous cargo.

3. The organisational structure, forms, methods, and directions of activity of the Security Police are determined by the Minister of Internal Affairs.

Article 17. Special-Purpose Police

1. The Special-Purpose Police are police divisions designated for conducting special operations and counter-terrorism activities.

2. Special-purpose police divisions are established by decision of the Minister of Internal Affairs upon the proposal of the Director of the Department.

3. The organisational structure, forms, methods, and directions of activity of the Special-Purpose Police are determined by the Director of the Department.

CHAPTER 3. POLICE FUNCTIONS

Article 18. Police functions in the areas of protecting human rights and freedoms, as well as maintaining law and order and public safety

In accordance with its assigned duties, the police:

take necessary measures to protect the life, health, honour, dignity, rights, freedoms, and lawful interests of citizens;

implement measures to maintain law and order and ensure public safety;

organise activities to maintain law and order in streets, squares, parks, stadiums, railway stations, airports, river ports, and other public places, as well as during gatherings, cultural and sports events, and other similar activities, and restore public order in cases provided for by legislation in force;

exercise state control over compliance with road traffic legislation and ensuring road traffic safety, perform state registration and accounting of vehicles, issue driver's licences, and regulate traffic;

ensure the safety of individuals under protection on the grounds and under the procedure prescribed by law;

take measures to prevent and combat domestic violence or gender-based violence;

ensure control over compliance by individuals and legal entities with specific rules and procedures regulating the circulation of weapons, special means of personal protection and active defence, ammunition, explosives, and other items and substances covered by the authorization system of internal affairs authorities;

issue permits for the import and export of weapons and ammunition into and out of the Republic of Belarus, for the establishment and operation of shooting ranges, shooting galleries, hunting shooting stands, and weapon repair workshops; confiscate weapons and related ammunition from organisations and citizens in cases of violations of storage or use rules, or in other instances provided for by legislative acts;

exercise control, within their legal competence, over adherence to radiation safety requirements in specially defined radioactive contamination zones;

contribute to ensuring the legal regime of martial law, a state of emergency, or a zone of environmental emergency, in case they are declared across the Republic of Belarus or in specific areas, in accordance with the law;

ensure, in accordance with the law. public order and guard zones affected by, or at risk of, fires, explosions, or other emergencies that pose a threat to human life, health, or property;

provide security during the transportation of weapons, ammunition, explosives, narcotic, psychotropic, toxic or radioactive substances, or other dangerous materials or substances in accordance with the conditions established by law;

take measures to ensure the safety of abandoned property entrusted to them until it is transferred to authorised persons;

verify compliance with the rules governing the stay of foreign nationals and stateless persons in the Republic of Belarus and enforce decisions on the deportation of foreign nationals;

detain and keep in specially designated facilities foreigners who have entered or reside illegally in the Republic of Belarus and are subject to deportation.

Article 19. Police Functions in Combating Crime and Other Unlawful Infringements

In fulfilling their duties to combat crime and other unlawful infringements, the police:

take measures to prevent crimes and offences within their competence, including:

identifying and addressing the causes and conditions that contribute to criminal and administrative offences and taking measures to ensure the latter are remedied;

collaborating with governmental organisations and institutions, local self-governance bodies, educational institutions, and public associations in the field of offence prevention;

maintain preventive, forensic, and operational records;

accept and register incoming complaints and notifications of crimes or administrative offences, and information about incidents, react promptly to them, and maintain records thereof;

conduct pre-trial investigations of criminal offences in accordance with the procedures established by the Criminal Procedure Code;

carry out operational and investigative activities in accordance with the law;

search for defendants whose whereabouts are unknown, individuals evading bodies conducting criminal proceedings, individuals evading serving punishment or other measures of criminal responsibility, as well as defendants and debtors in civil and economic cases, missing persons, and other individuals as specified by legislative acts; carry out measures to identify perpetrators of crimes and persons subject to administrative liability; indentify unidentified bodies; establish the identity of citizens who, due to their health or age, cannot provide information about themselves, as well as those who refuse to do so; identify minors who are lost or abandoned, and identify their parents, adoptive parents, guardians, or custodians;

in cases stipulated by law, process administrative offence cases, impose administrative penalties, and ensure their enforcement;

detain and deliver individuals suspected of committing crimes or offences, in cases and under the procedure established by law;

implement protective measures for witnesses and other participants in criminal proceedings as prescribed by law;

apply scientific and technical methods and means during crime scene inspections and evidence analysis, including physical evidence, and conduct forensic examinations and scientific and technical studies through accredited laboratories and specialists, as prescribed in accordance with the law;

ensure the operation of detention facilities for offenders, and safeguard and detain individuals in custody, in accordance with the law;

monitor the behaviour of individuals under house arrest, and those who are temporarily released under judicial control, or on bail;

assist bailiffs in enforcing executive actions in accordance with legislative acts;

fulfil requests from law enforcement agencies of other countries or international police organisations within their competence, in compliance with the law and international agreements of the Republic of Belarus.

Article 20. Police Functions in the Provision of Emergency Assistance

In fulfilling their duties to provide emergency assistance to individuals in a helpless physical or psychological state, as well as to those affected by criminal acts, other offences, natural disasters, or other similar factors, the police:

provide, when necessary, first aid to individuals in a helpless physical or psychological state, as well as to those injured by crimes, offences, various emergencies, and other incidents;

ensure the timely notification of the population about safety measures required to protect lives, health, and property;

participate, in accordance with the law, in rescue operations and the evacuation of people and property during accidents, catastrophes, fires, or natural disasters.

CHAPTER 4. LEGAL STATUS OF A POLICE OFFICER

Article 21. Powers of a Police Officer

1. Police officers, in carrying out the tasks of the police, have the right to demand that individuals not directly subordinate to them comply with their lawful orders, and in the case of non-compliance or resistance, apply measures of coercion.

2. The actions of police officers that temporarily restrict the rights of individuals are accompanied by the words “In the name of the law.” In this case, every individual is obligated to cease active actions, unconditionally comply with the demands of the police officer, and execute their lawful orders related to the performance of their official duties.

3. The lawful demands of a police officer are mandatory for all individuals and legal entities. Failure to comply with these demands entails responsibility established by law.

Article 22. Basic Rights of a Police Officer

1. A police officer, in order to ensure the performance of the tasks assigned to them, has the right to:

demand that citizens comply with law and order;

if there is a reasonable suspicion that a criminal act or another unlawful act has been committed, conduct a document check of the related person, inspect vehicles and cargo, and make decisions about their temporary seizure;

enter, without hindrance, if necessary with the destruction of locking devices and other objects, at any time of the day or night, into residential premises and other lawful property of citizens and premises and other objects of organizations, and inspect them while pursuing suspects (defendants) in the commission of crimes or if there are sufficient grounds to believe that a crime is being committed or has been committed there, or that the suspect (defendant) is there, or if a person is hiding from the body conducting criminal proceedings, or a person evading the serving of a sentence or other

measures of criminal responsibility, and also enter the residences and other lawful properties of persons under preventive supervision;

conduct a personal search of persons detained on the ground and in accordance with the procedure established by legislative acts, and inspect the belongings and vehicles that they have with them;

under the procedure established by the legislation, detain and transport lawbreakers to premises of the police or other law enforcement authorities to establish their identity, conduct a personal search, inspect their belongings, and complete procedural documents;

for conducting procedural actions, summon citizens based on materials or criminal cases and administrative offense cases in progress;

use, in urgent cases, vehicles owned by organizations or citizens for the performance of urgent official duties related to pursuing persons who have committed crimes or are suspected (accused) of committing crimes, while taking appropriate measures to ensure the safety of the driver and passengers, and for transporting persons in need of urgent medical assistance to healthcare organizations. Expenses associated with the provision of vehicles, communication means, upon the owner's (possessor's) request, are reimbursed in accordance with the law;

temporarily restrict access to certain areas or premises, suspend work being carried out, limit or prohibit vehicle movement if there is a threat to law and order, personal safety of citizens, state security, or to the environment;

stop vehicles and remove persons under the influence of alcohol, drugs, psychotropic substances, their analogues, and toxic or other intoxicating substances, or those without a right to drive vehicles from driving them; prohibit participation in the traffic of vehicles whose construction or technical state do not comply with the requirements of technical normative legal acts; demand that relevant organizations eliminate road defects; suspend or prohibit road repair and other works on roads carried out in violation of technical requirements to ensure road safety;

seize property and items prohibited from circulation in the territory of the Republic of Belarus, documents with signs of forgery, informational products containing calls for extremist activities or propagating such activities, and make decisions regarding them in accordance with the law; in case of violations of storage or use rules established by legal acts, seize firearms, ammunition, explosives, narcotics, and other materials, substances, or objects requiring permission, from individuals or legal entities;

temporarily restrict or prohibit the movement of vehicles and pedestrians on roads (or parts of them), and also restrict access of citizens to certain areas or objects, prohibit citizens from making video recordings, taking photos or filming, and require them to leave specific locations during procedural actions;

under the procedure established by legislative acts, demand information necessary for performing police tasks and receive it free of charge from governmental authorities and institutions, as well as other organizations;

conduct personal searches of citizens and inspect the items they carry with them, including with technical and special means, at guarded facilities, at entrances to airports, railway stations, at metro facilities, and in other places defined by legal acts;

demand that citizens comply with access and internal security regulations established at guarded facilities, take measures to search for and detain, on the territory of guarded objects, individuals unlawfully entering these guarded objects, and check the state of engineering and technical protection means, as well as guarding means and systems established at the guarded objects;

to fulfil police tasks while respecting the privacy rights of individuals as guaranteed by law, photograph, record audio, or make video recordings;

in accordance with the established procedure, photograph, record, and make audio or video recordings while performing official duties, and store the collected information in compliance with legal requirements;

store, carry, use, and apply weapons, use physical force, special tools, and special equipment in cases and in accordance with the procedures established by this Law and other legislative acts.

2. A police officer is also granted other rights in accordance with legislative acts.

Article 22. Main Rights of a Police Officer

1. A police officer, to ensure the fulfillment of the tasks assigned to them, has the right to:

demand that citizens comply with law and order;

when there is a reasonable suspicion of a criminal act or other unlawful infringement, check the documents of the person involved, inspect vehicles and cargo, and make decisions about their temporary seizure;

enter, without hindrance and, if necessary, by damaging locking mechanisms or other objects, at any time of the day or night, into residential premises and other legal possessions of citizens, as well as premises and other objects of organizations, and inspect them while pursuing suspects (accused persons) of committing crimes or if there is sufficient reason to believe that a crime is being committed or has been committed there or a suspect (accused person) is hiding from a body conducting criminal proceedings or an individual evading serving a sentence and other measures of criminal responsibility is there; they may also freely enter residential buildings or other legal possessions of individuals under preventive supervision;

conduct personal searches of individuals detained on the grounds and according to the procedure established by legislative acts and inspect their belongings and vehicles that are with them;

in accordance with the procedure established by law, detain and transport offenders to police stations or premises of other law enforcement authorities to establish their identity, conduct personal searches, inspect their belongings, and draft procedural documents;

summon citizens for procedural actions based on ongoing proceeding materials, criminal cases, or cases of administrative offenses;

in urgent cases, use vehicles belonging to organizations or individuals to perform immediate official duties related to pursuing persons who have committed crimes or are suspects in (accused of) committing them, while taking appropriate measures to ensure the safety of the driver and passengers of the vehicle; and to transport individuals needing emergency medical assistance to healthcare facilities. Expenses related to the use of vehicles or communication means, upon the owner's (possessor's) request, are reimbursed in accordance with procedures established by the law;

temporarily restrict access to certain areas or premises, suspend ongoing works, and limit or prohibit vehicle movement in cases of threats to law and order, personal safety, state security, or the environment;

stop vehicles and remove persons under the influence of alcohol, drugs, psychotropic substances, their analogues, and toxic or other intoxicating substances, or those without a right to drive vehicles from driving them; prohibit participation in the traffic of vehicles whose construction or technical state do not comply with the requirements of technical normative legal acts; demand that relevant organizations eliminate road defects; suspend or prohibit road repair and other works on roads carried out in violation of technical requirements to ensure road safety;

seize property and items prohibited from circulation in the territory of the Republic of Belarus, documents with signs of forgery or informational products containing calls for extremist activities or propagating such activities, and make decisions regarding them in accordance with the law; in case of violations of storage or usage rules established by legal acts, seize firearms, ammunition, explosives, narcotics, and other materials, substances, or objects requiring permission, from individuals or legal entities;

temporarily restrict or prohibit the movement of vehicles and pedestrians on roads (or their specific sections), and also restrict access of citizens to certain areas or objects, prohibit citizens from making recording videos, taking photos or filming, and require them to leave specific locations during procedural actions;

under the procedure established by legislative acts, demand information necessary for performing police tasks and receive it free of charge from governmental authorities and institutions, as well as other organizations;

conduct personal searches of citizens and inspect the items they carry with them, including with technical and special means, at guarded facilities, at entrances to airports, railway stations, at metro facilities, and in other places defined by legal acts;

demand that citizens comply with access and internal security regulations established at guarded facilities, take measures to search for and detain, on the territory of guarded objects, individuals unlawfully entering these guarded objects, and check the state of engineering and technical protection means, as well as guarding means and systems established at the guarded objects;

to fulfil police tasks while respecting the privacy rights of individuals as guaranteed by law, photograph, make audio or video recordings;

in accordance with the established procedure, photograph, film, and make audio or video recordings while performing official duties, and store the obtained information in compliance with legal requirements;

store, carry, use, and apply weapons, use physical force, special tools, and special equipment in cases and procedures established by this Law and other legislative acts.

2. A police officer is also granted other rights in accordance with legislative acts.

Article 23. Main Responsibilities of Police Officers

1. A police officer is obligated to:

respect and protect human dignity, ensure and safeguard the rights and freedoms of individuals;

adhere to the provisions of the Constitution of the Republic of Belarus and other normative legal acts regulating police activities, as well as the Police Officer's Oath;

perform their official duties in a professional way and in accordance with the requirements of normative legal acts, job descriptions, and orders from superiors;

take immediate measures to provide medical and other necessary assistance to persons affected by crimes, other unlawful infringements or accidents, or individuals in a helpless or life- or health-threatening situation;

ensure the protection of the rights and lawful interests of detained persons or individuals brought to a police authority;

take all possible measures to safeguard property in cases of natural disasters, catastrophes, accidents, or other emergencies;

maintain the confidentiality of restricted-access information that becomes known to them in the course of their official duties;

inform their immediate supervisor of any circumstances that prevent their continued service in the police or occupation of their current position.

2. When interacting with citizens, a police officer must provide their surname, position, and special rank, and, upon request, present their service ID, allowing the individual to review the information without letting go of the ID.

3. If a citizen approaches a police officer with a statement or report about events that threaten personal or public safety, or if an officer personally identifies such events, regardless of their position, location, or time of day, anywhere within the territory of the Republic of Belarus, the officer is required to:

take possible measures to prevent the crime or other unlawful infringement, rescue citizens, provide necessary assistance to those in need, identify and apprehend individuals who have committed a crime or other unlawful infringement, identify witnesses of the crime or the other unlawful infringement, and secure the scene;

report this to the nearest territorial police authority.

The requirements of this paragraph (except for the obligation to report this to the territorial police authority) do not apply to police officers performing covert operational-search activities.

4. In all cases where a citizen's rights and freedoms are restricted, a police officer is required to explain them the grounds for such a restriction and its legal consequences.

5. A police officer is also required to fulfill other responsibilities as stipulated by legislative acts.

Article 24. Liability of Police Officers

1. A police officer bears personal responsibility for their actions, decisions, and consequences thereof.

2. If a police officer commits unlawful acts, they are subject to criminal, administrative, civil, and disciplinary liability in accordance with legislative acts.

3. Executing a knowingly illegal order or instruction does not exempt a police officer from liability.

4. Damage caused to an individual or legal entity by unlawful actions of a police officer is compensated by the state in accordance with the procedure established by legislative acts.

5. A police officer acting within the scope of the powers granted by this Law and other legislative acts is not held liable for any resulting damage, provided their actions comply with the powers entrusted to them by laws and other legal acts.

6. The grounds and procedure for holding a police officer disciplinarily accountable, as well as the application of incentives, are determined by the Police Disciplinary Charter of the Republic of Belarus, approved by law.

CHAPTER 5. POLICE MEASURES

Article 25. Types of Police Measures

1. To protect human rights and freedoms, prevent threats to public safety, or address violations thereof, the police, within their competence, apply preventive and coercive measures as defined by this Law.

2. Police measures are applied solely to achieve the tasks of the police. The chosen type of a police measure must be lawful, necessary, proportional, and effective.

3. A police measure is terminated if its objective has been achieved, if it is evident that achieving the objective is impossible, or if its continued application is no longer necessary.

Article 26. Preventive Measures

1. To prevent threats to public safety and law and order or to stop violation thereof, the police, within their competence, apply the following preventive measures:

document verification;

questioning of individuals;

identification of individuals;

surface checks and inspections;

personal searches of a person;

stopping and inspecting vehicles;

preventive conversations;

official warning;

putting a person on preventive registration;

issuance of a protective order;

demands to vacate certain locations and/or restrict access to specific areas;

restrictions on the movement of individuals, vehicles, or possession of property;

entry into residences or other lawful possessions of individuals;

monitoring compliance with regulations on the handling of weapons;

use of technical means for photo, audio, and video recording;

verification of compliance with restrictions imposed by law on certain categories of individuals;

other measures in accordance with legislation.

2. When conducting preventive measures, the police must inform the individual about the reasons for their application and provide details of the normative legal acts on which these measures are based.

3. The procedure and conditions for applying preventive measures are determined by procedural legislation and other legislative acts.

Article 27. Coercive Measures and Conditions for Their Application

1. In fulfilling police tasks and considering the prevailing circumstances, the nature of the offense, and the personality of the offender, a police officer has the right to apply the following coercive measures:

physical force;

special tools;

special equipment;

firearms.

2. The type and extent of the coercive measure are determined by the police officer on their own, based on the specific situation, the nature of the offense, and the personality of the offender. Police officers are obligated to strive to avoid causing severe consequences when applying coercive measures.

3. The application of coercive measures must be preceded by a clear and evident warning to the individual against whom they may be applied. The individual must be given sufficient time to comply with the lawful demands of the police officer, except in cases where a delay in applying such measures would create an immediate danger to the life of the police officer or other citizens or could lead to other serious consequences.

4. Coercive measures that may result in bodily harm or death are applied only after all other means of persuasion have been exhausted.

5. When applying coercive measures, the police officer is obliged to take action to provide urgent medical assistance if necessary.

6. Every case of applying physical force, special means, special equipment, or firearms must be promptly reported by the police officer to their immediate superior. In cases where a citizen is injured or dies as a result of the application of such measures, the officer must immediately inform the nearest territorial police authority, whose officials must promptly notify the relevant prosecutor.

7. A police officer who applies coercive measures in compliance with the requirements of this Law is exempt from liability for any resulting damage.

8. Police officers are required to undergo special training and periodic evaluations to ensure their ability to act appropriately in situations involving applying coercive measures.

9. The application of coercive measures in violation of legal requirements entails liability as established by legislative acts.

Article 28. Use of Physical Force

1. A police officer has the right to use physical force, including combat techniques and improvised means, if non-violent methods have proven ineffective, in the following cases:

self-defence or defence of another person from a criminal assault;

detention of an individual who has committed an offence and actively attempts to evade detention;

preventing an attack on an object guarded by the police, a police vehicle, firearms, special communication equipment, or other police property;

suppression of mass riots or group actions disrupting public order.

2. The use of combat techniques is prohibited against women with visible signs of pregnancy, persons with apparent disabilities, or minors whose age is obvious or known, except in cases where such individuals commit armed or group assaults or other actions threatening the life or health of citizens or police officers.

Article 29. Use of Special Means

1. A police officer may use handcuffs and other means of mobility restriction, rubber and plastic batons, binding devices, special chemical and marking agents, light and sound distraction devices, tools for breaking into premises, electroshock devices for contact and contact-distance use, devices for firing cartridges loaded with rubber or similar non-lethal projectiles, vehicle immobilisation devices, and other special means, including service animals, in the following cases:

detaining individuals suspected of committing a crime who actively resist police officers;

preventing escape attempts by detained individuals;

suppressing disobedience or resistance to the lawful demands of police officers;

repelling an attack on police officers or other citizens;

freeing hostages;

repelling an attack on a facility or a vehicle guarded by the police, and/or freeing seized facilities or vehicles, regardless of their ownership;

detaining and delivering to police authorities individuals suspected (or accused) of committing a crime, individuals under administrative proceedings who resist or disobey, as well as escorting and holding individuals subjected to administrative arrest, deportation, or expulsion, persons detained on direct suspicion of committing a crime, or persons in custody who resist or disobey, or where there are grounds to believe they may escape or harm others or themselves;

suppressing mass riots and group violations of public order or actions aimed at damaging and/or destroying property;

stopping a vehicle whose driver refuses to comply with clearly apparent lawful repeated demands by a police officer to stop the vehicle;

neutralising an animal that poses a threat to the life or health of police officers or other individuals.

2. The use of special means is prohibited against women with visible signs of pregnancy, individuals with obvious signs of disability, and minors whose age is clearly apparent or known, except in cases where such persons are engaged in armed or group assaults or other actions threatening the life or health of citizens or police officers.

3. The rules for storing, carrying, and using special means are determined by the Minister of Internal Affairs.

Article 30. Use of Special Equipment

1. A police officer may use water cannons, armoured vehicles, and other specialised transport in the following cases:

detaining individuals suspected of committing a crime who are offering armed resistance;

group violations of public order or mass riots;

repelling a group attack that threatens the life and health of citizens;

freeing hostages;

repelling an attack on facilities or vehicles under police protection, and/or freeing seized facilities or vehicles, regardless of their ownership;

forcibly stopping a vehicle whose driver has ignored lawful demands from a police officer to stop;

ensuring the enforcement of states of emergency or martial law.

2. The rules for using special equipment are determined by the Minister of Internal Affairs.

Article 31. Restrictions on the Use of Special Means and Special Equipment

1. Police officers are prohibited from:

using special means to suppress unlawful mass events (gatherings, rallies, demonstrations, marches, and pickets) of a non-violent nature that do not disrupt public order, transport operations, communications, or activity of organisations;

striking individuals with rubber or plastic batons on the head, neck, clavicle area, abdomen, genitals, or the area around the heart;

using handcuffs or other means of mobility restriction for more than two continuous hours without relieving the pressure they cause;

intentionally targeting citizens with special devices containing tear gas or irritants, or using them repeatedly in the same area during the active period of these substances;

using devices for firing cartridges loaded with rubber or similar non-lethal projectiles in violation of the manufacturer’s technical specifications;

using vehicle immobilisation devices to forcibly stop two-wheeled mechanical vehicles, personal mobility devices, and passenger transport vehicles, or deploying them on roads with limited visibility, railway crossings, bridges, overpasses, flyovers, or tunnels;

using water cannons when the air temperature is below five degrees Celsius.

2. The use of special equipment and special means against an undefined group of individuals is permitted only by the decision of the relevant police commissioner, with subsequent notification of the prosecutor within 24 hours.

Article 32. Use and Application of Firearms

1. A police officer may use a firearm as an exceptional measure of coercion against an individual who:

attacks a police officer or another citizen, endangering their life or health;

attacks as part of a group or using weapons or other methods posing public danger or employing vehicles, machinery, or mechanisms in an attack, or attacks a facility or transport under police protection;

takes an action directly attempting to forcibly seize firearms, special communication devices, or other police property from a police officer;

takes or holds someone hostage;

is caught committing a serious or particularly serious crime and attempts to flee;

escapes from custody or during escort;

refuses to comply with a lawful demand by a police officer to immediately surrender (or place down) a weapon, explosive substance, explosive device, or other items that may pose a threat to the life or health of the police officer or other citizens;

fails to comply with a lawful demand by a police officer to stay at a safe distance, attempts to reach for something in their clothing, vehicle, or belongings, or engages in other actions that could endanger the life or health of the officer or other citizens.

2. Firearms may also be used to free seized facilities or vehicles, regardless of ownership.

3. The use of firearms without prior warning is permitted:

when individuals specified in the eighth and ninth paragraphs of the first part of this article attempt to approach a police officer, reduce the set distance, touch the weapon, or engage in actions interpreted by the officer as a threat of violence endangering the life or health of the officer or other citizens;

during armed resistance or an armed attack, including sudden attacks using vehicles or other means threatening the life or health of people;

to prevent attempts to seize a firearm.

4. A police officer may use a firearm for:

issuing a distress signal or calling for assistance;

neutralising an animal directly threatening the life or health of citizens;

stopping a vehicle by damaging it if the driver's actions threaten the life or health of citizens or the officer, or if there is reliable information that the vehicle is operated by someone who has committed a serious or particularly serious crime.

5. A police officer has the right to prepare a firearm for use if they believe the situation might require its application or use.

6. The use or application of firearms is prohibited:

in densely populated areas where bystanders might be harmed;

towards warehouses or storage facilities containing flammable, explosive, or highly toxic substances, as well as vehicles transporting such substances, except when repelling an attack or in cases of extreme necessity;

against women, individuals with visible disabilities, or minors whose age is apparent or known, except when such persons engage in armed or group attacks or other actions threatening the life or health of citizens.

7. The rules for storing, carrying, applying, and using firearms are determined by the Minister of Internal Affairs.

CHAPTER 6. POLICE SERVICE

Article 33. Police Officer

1. A police officer is a civil servant with a special status.

2. A police officer can be a citizen of the Republic of Belarus who has taken the Police Officer's Oath, serves in appropriate police positions, and has been awarded a special police rank.

3. Conscripts enlisted in the police service are removed from military registration and are included in the police personnel roster.

Article 34. Special Police Ranks

1. The police service establishes the following special ranks:

1.1. Rank-and-file personnel - police officer.

1.2. Junior commanding personnel:

police corporal;

police staff sergeant;

first class police sergeant;

police master sergeant;

police sub-inspector.

1.3. Middle commanding personnel:

police inspector;

senior police inspector;

police commissioner-inspector.

1.4. Senior commanding personnel:

police commissioner;

senior police commissioner;

chief police commissioner.

1.5. Highest commanding personnel:

general police commissioner;

general police inspector.

2. The procedure for awarding special ranks to police officers is governed by the Regulations on Police Service, approved by the Government of the Republic of Belarus (hereinafter referred to as the “Regulations on Police Service”).

Article 35. Police Uniform

1. A standard uniform is established for police officers.

2. Police officers are provided with uniforms and rank insignia approved by the Government of the Republic of Belarus, as well as an official ID card and a special badge. The designs, issuance procedures, and usage guidelines for ID cards and special badges are approved by the Minister of Internal Affairs of the Republic of Belarus.

3. Police officers are prohibited from removing or concealing the special badge from the uniform or otherwise obstructing the reading or recording of its information using technical means.

4. A police officer performing official duties in civilian clothing must carry the special badge unless its presence interferes with covert operational and investigative activities.

5. Police officers assigned to special tasks must display the badge number on their uniform and helmet in a way that allows it to be read or recorded using technical means, except when performing special assignments in accordance with police leadership decisions.

6. The rules for wearing the uniform and the standards for police equipment provisioning are approved by the Minister of Internal Affairs.

Article 36. Police Service

1. The procedures and conditions for police service are regulated by the Regulations on Service.

2. Police officers may not be assigned to perform tasks not stipulated by this Law.

3. The period of police service is counted towards insurance service, professional experience, and civil service tenure.

Article 37. Requirements for Police Officers

1. Citizens of the Republic of Belarus aged 18 or older, with complete secondary education, suitable health, necessary moral and psychological qualities, and the required level of physical fitness, may be admitted to police service.

2. The requirements for physical fitness levels for police service candidates are approved by the Ministry of Internal Affairs.

3. Health requirements for candidates and the list of medical conditions that prevent police service are approved by the Ministry of Internal Affairs in agreement with the Ministry of Health.

4. Citizens cannot be admitted to police service in the following cases:

4.1. Conviction for committing an intentional serious or especially serious crime;

4.2. Failure to meet the requirements of the competition for filling a vacant police position;

4.3. Legal incapacity or limited legal capacity as determined by a court decision that has entered into force;

4.4. Refusal to undergo a special check or a procedure for obtaining access to state secrets if such access is required for performing official duties;

4.5. Refusal to submit declarations of income and property or deliberate submission of incomplete or inaccurate information;

4.6. The presence of a confirmed condition or other contraindication identified by the military medical commission that prevents the fulfillment of official duties;

4.7. Loss of Belarusian citizenship or acquisition of citizenship (nationality) of a foreign state;

4.8. Providing knowingly false information.

5. Regardless of professional and personal qualities, level of physical fitness, or health condition, the following individuals cannot be admitted to police service:

5.1. those who have formally refused to take the Police Officer’s Oath;

5.2. those subject to dismissal under the Republic of Belarus Law “On Lustration”.

6. The procedure for selecting candidates for police service, conducting special checks, medical examinations, polygraph testing, professional psychophysiological assessments, and mandatory periodic medical check-ups for police officers is established by the Director of the Police Department.

Article 38. Police Commissions

1. Permanent police commissions are established within the Department and territorial police bodies to conduct recruitment for police service (excluding admission to police educational institutions) and hold competitions for filling vacant positions.

2. Representatives of local self-government bodies and civil society with public credibility, high professional and moral qualities are mandatorily included in the police commissions of territorial police bodies.

3. A member of a police commission has the right to:

3.1. review materials submitted to the commission, participate in their examination and verification;

3.2. express opinions and provide additional materials on the issues under consideration;

3.3. propose draft decisions on any issues and participate in voting;

3.4. express a written dissenting opinion regarding the commission's decision;

3.5. exercise other powers as defined by the regulations of the police commission.

4. The maximum continuous term of office for a member of a police commission is three years.

5. A standard regulation for the operation of police commissions is approved by the Ministry of Internal Affairs.

6. The operational regulations and the composition of the Department police commission and territorial police commissariats are approved by orders of the Director of the Police Department and police commissioners, respectively.

Article 39. Certification of Police Officers

1. To comprehensively and objectively evaluate the performance of police officers, determine their level of professional training, and assess their suitability for their positions, certification is conducted at least once every five years.

2. Extraordinary certification is carried out in the following cases:

2.1. appointment to a higher position without a competitive selection process;

2.2. consideration of demotion to a lower position due to insufficient qualifications for the current role.

3. Certification of the Director of the Department and their deputies is conducted in accordance with procedures established by the Minister of Internal Affairs.

4. Certification of police officers is conducted by certification commissions of territorial police bodies in accordance with procedures determined by the Ministry of Internal Affairs.

Article 40. Restrictions Related to Police Service

1. Police officers are subject to the restrictions specified in the Law of the Republic of Belarus “On Combating Corruption”, this Law, and other legislative acts.

2. Police officers cannot be members of political parties or organisations pursuing political goals.

3. Police officers are prohibited from organising or participating in strikes.

4. Other restrictions related to police service may be established by legislative acts.

Article 41. Police Service Discipline

Service discipline in the police is regulated by the Police Disciplinary Code, approved by the Government of the Republic of Belarus.

Article 42. Responsibility of Police Officers. Compensation for Harm Caused by Illegal Decisions and Actions (Inaction) of the Police

1. Police officers bear responsibility for failure to perform or improper performance of their official duties, as established by legislative acts.

2. Harm caused to individuals or legal entities as a result of illegal decisions or actions (inaction) of the police (or their officers) is subject to compensation in accordance with the procedure established by law.

3. If a police officer violates the rights and lawful interests of individuals or legal entities, and their decisions, actions (inaction) are deemed illegal in accordance with established procedures, the relevant police body (unit) must take measures to restore the violated rights and, upon request, issue a public apology.

CHAPTER 7. LEGAL AND SOCIAL PROTECTION OF POLICE OFFICERS

Article 43. Legal Protection of Police Officers

1. A police officer, while performing official duties, acts as a representative of state authority and is protected by the state.

2. A police officer, in the course of their official duties, is subordinate only to their immediate and direct supervisors. No one has the right to interfere in the professional activities of a police officer except cases provided by law.

3. Non-compliance with lawful demands of a police officer, any actions obstructing the performance of their duties, attacks or threats of attacks on the life, health, honour, dignity, or property of a police officer, as well as such actions against their close relatives in connection with their official duties, result in liability provided for by legislative acts.

4. A police officer is required to refuse to execute orders or directives that are clearly illegal if they knew or should have known of their illegality and is required to act within the framework of law.

5. A police officer who receives an order or directive that is clearly illegal is required to report it to the General Inspection of the Police Department or the prosecutor.

6. A police officer who refuses to comply with a clearly illegal order or directive is exempt from liability.

7. Any official who issues a clearly illegal order or directive to a police officer shall be held accountable under the procedure established by law.

Article 44. Police Officer's Right to Reasonable Professional Risk

A police officer has the right to reasonable professional risk. Any harm caused by a police officer as a result of reasonable professional risk aimed at achieving a socially beneficial goal is not considered an offence.

Professional risk is deemed reasonable if the actions of the police officer were objectively based on the situation, the set goal could not have been achieved without taking risks, and the officer took all possible measures to prevent harm to legally protected interests.

Article 45. Rights of Police Officers on Official Business Trips

Police officers on official business trips have the right to priority purchase of travel tickets for all types of transportation and priority accommodation in hotels upon presentation of an official business trip certificate.

Article 46. Compensation for Use of Personal Vehicles for Official Purposes

Police officers who use their personal vehicles for official purposes are entitled to compensation under the procedure and in the amount determined by the Government of the Republic of Belarus.

Article 47. Social Protection of Police Officers

1. Social protection of police officers is ensured by the state.

2. Police officers are subject to mandatory state insurance for life and health.

3. In the event of the death of a police officer resulting from a criminal attack on their life or health related to their official duties or due to them taking measures to prevent or suppress a crime or administrative offense, the family (or heirs) of the deceased officer shall receive a one-time insurance payment equal to 10 years' worth of salary and seniority allowance. This insurance benefit is paid on the above grounds even if the officer dies within one year after leaving the police service.

If a police officer becomes disabled, including within one year after leaving their service in internal affairs institutions, due to circumstances outlined in the first paragraph of point 3, a one-time insurance payment is made as follows:

Group I disability: 5 years' worth of salary and seniority allowance;

Group II disability: 4 years' worth of salary and seniority allowance;

Group III disability: 3 years' worth of salary and seniority allowance.

A the police officer who have received serious or moderate bodily injuries not resulting in disability, caused by circumstances outlined in the first paragraph of point 3 is entitled to a one-time insurance payment of two years' or six months' salary and seniority allowance, respectively.

4. Police officers relocated for service or promoted with the requirement to move to another locality are entitled to compensation of two months' salary and half a month's salary for each family member who relocates with them.

4. While under the disposal of a police supervisor, police officers retain their salary (monetary allowance) based on their last held position, under the procedure established by the Regulations on Service.

5. Damages incurred by a police officer while performing official duties are compensated from the state budget of the Republic of Belarus, under the procedure established by the legislation of the Republic of Belarus.

6. Within the limits of funding allocated for police operations or other lawful sources, one-time benefits or other payments may be provided as determined by the Department.

7. Pensions, housing, medical care, health-resort treatment and rehabilitation for police officers and their families are provided under the procedure established by legislative acts.

Article 48. Working Hours of Police Officers

1. Police officers have an irregular working schedule.

2. An enhanced duty regime may be declared in the police system for a specified period. The procedure for such a regime is established by the order of the Department Director.

3. Work on weekends and public holidays is compensated at double rate or, upon the officer's request, with an additional day off.

Article 49. Police Officers' Leave

1. Police officers are entitled to 30 calendar days of annual paid leave.

2. Officers with over 10 years of police service are entitled to 35 days of annual paid leave; those with over 15 years, 40 days; and those with over 20 years, 45 days.

3. Additional paid leave may be granted in cases provided by law.

3. Leave may be interrupted due to service needs, and officers may be called back to work in accordance with the Regulations on Service.

Article 50. Salary of Police Officers

1. The salary (monetary allowance) of police officers consists of a base salary and a salary for their special rank.

2. In addition to their salary, police officers receive allowances for seniority and other supplements and compensations on top of the salary (monetary allowance).

3. The amounts of salaries, allowances, and compensations, as well as the procedure and conditions for their payment, are determined by the Minister.

CHAPTER 8. POLICE FUNDING

Article 51. Police Funding

1. The police are funded out of the state budget, with the Department having a separate expenditure estimate.

2. Additional programs aimed at crime prevention, protection of life, health, and property, as well as maintaining public order, are developed and implemented under agreements between territorial police authorities and local self-government bodies. These programs are financed by the local budget. Local self-government bodies may also use their budgetary funds to finance other programs of territorial police authorities related to ensuring the safety of the population living in the specified area.

3. Other extra-budgetary funds obtained under the procedure established by laws may also be used for police financing.

CHAPTER 9. CONTROL OVER POLICE ACTIVITIES

Article 52. Appeals Against Police Officer's Actions

1. Any individual who believes that their rights and freedoms have been violated by the actions or inaction of a police officer has the right to appeal such actions to a superior official, the prosecutor's office, or the court, under the procedure established by the legislation of the Republic of Belarus.

2. Actions taken by a police officer may be appealed to the head of the relevant police system body. Decisions made by the head of the police system body may be further appealed in court under the procedure estabiiished by law.

3. Decisions made by police officials regarding criminal cases and administrative offences are subject to appeal under the procedure established by the legislation of the Republic of Belarus.

4. Decisions made by the Director of the Department may be appealed in court under the procedure established by the legislation of the Republic of Belarus.

Article 53. Control over the Activities of Police Officers and Other Employees of the Department System

1. Control over the activities of police officers is carried out by the General Inspectorate of the Police Department (hereinafter referred to as the General Inspectorate).

2. The General Inspectorate operates independently, and interference in its activities by other structural units or officials of the Department is not permitted. It is directly accountable to the Director of the Department, who exercises administrative supervision over it in accordance with the law.

3. The authority of the General Inspectorate extends to the Department's structural divisions, territorial police authorities, and other entities within the police system.

4. The General Inspectorate:

a) identifies unlawful actions, breaches of the Disciplinary Statute, and violations of the Police Code of Ethics of the Republic of Belarus by police officers, civil servants, and other employees of police authorities, and takes appropriate measures in response;

b) establishes causes and conditions that contribute to violations committed by police officers, civil servants, and employees of police authorities, and developes recommendations to address and eliminate identified issues;

c) performs other functions as determined by the Director of the Department.

5. If evidence of a crime is found during the activities specified in point 4 of this Article, the General Inspectorate shall immediately transfer the relevant materials to the Prosecutor's Office of the Republic of Belarus.

Article 54. State Control and Prosecutorial Oversight of Police Activities

State control over the activities of police officers, civil servants, and employees of bodies and institutions within the police system is carried out in the form of parliamentary, governmental, and financial control, and prosecutorial oversight, under the procedure established by the legislation of the Republic of Belarus.

CHAPTER 10. FINAL AND TRANSITIONAL PROVISIONS

Article 55. Measures for Implementing the Provisions of this Law

1. Within six months, the Government of the Republic of Belarus shall:

prepare and submit proposals for amending and supplementing legislative acts to align them with this Law;

align the decisions of the Government of the Republic of Belarus with this Law;

ensure that republican bodies of state governance subordinate to the Government of the Republic of Belarus bring their normative legal acts into compliance with this Law;

take other measures necessary to implement the provisions of this Law.

2. Within three months, the Ministry of Internal Affairs shall:

liquidate the Main Directorate for Combating Organised Crime and Corruption and its subordinate units;

conduct organisational and staffing activities necessary to implement the provisions of this Law;

take other measures within its competence necessary to implement the provisions of this Law.

Article 56. Transitional Provisions

1. Until the administrative-territorial system of the Republic of Belarus is reorganised, territorial police agencies shall be established based on the existing territorial internal affairs bodies.

2. From the date of the publication of this Law, all rank-and-file and senior officers of internal affairs bodies, other employees of the Ministry of Internal Affairs of the Republic of Belarus and its territorial bodies and institutions, as well as rank-and-file and senior officers of the Investigative Committee of the Republic of Belarus and the State Forensic Examination Committee of the Republic of Belarus (hereinafter, unless otherwise specified, referred to as “militia officers”), are considered duly notified about potential forthcoming dismissal due to organizational and staffing measures.

3. Militia officers who expressed their wish to serve in the police and meet the requirements outlined in Article 37 of this Law may be admitted to police service, within three months after the Law is published, by issuing orders on their appointment with their consent or by competing for positions replaced with police officers that are available in any police system body or institution.

Positions offered to militia officers may correspond to, exceed, or fall below the officer’s prior rank or post held during service in the internal affairs bodies.

4. Militia officers who do not meet the requirements outlined in Article 37 of this Law or have declined to transition to police service are dismissed from internal affairs bodies within three months of being notified about forthcoming dismissal.

Militia officers may be dismissed from service in the internal affairs bodies or divisions of the Investigative Committee or the State Forensic Examination Committee of the Republic of Belarus before the term specified in this article on the grounds established by legislation.

5. Being on sickness leave or vacation does not exempt militia officers from dismissal from internal affairs bodies or divisions of the Investigative Committee or the State Forensic Examination Committee of the Republic of Belarus in accordance with this Law.

6. Militia officers admitted to police service will be granted corresponding special police ranks through orders of appointment, in accordance with the following scheme of special rank equivalence:

private of militia or justice – police officer

junior sergeant of militia or justice – police corporal

sergeant of militia or justice – police staff sergeant

senior sergeant of militia or justice – police sergeant first class

corporal of militia or justice – police master sergeant

warrant officer of militia or justice – police sub-inspector

senior warrant officer of militia or justice – police sub-inspector

junior lieutenant of militia or justice – police sub-inspector

lieutenant of militia or justice – police inspector

senior lieutenant of militia or justice – senior police inspector

captain of militia or justice – police commissioner-inspector

major of militia or justice – police commissioner

lieutenant colonel of militia or justice – senior police commissioner

colonel of militia or justice – chief police commissioner

major general of militia or justice – general police commissioner

lieutenant general of militia or justice – general police inspector.

7. For militia officers who are accepted into police service, their service time in special militia (justice) ranks is credited towards the service time required for awarding subsequent special police ranks.

8. Pending the formation of criminal police units, criminal militia units (except for units for combatting organized crime and corruption) may temporarily operate under the police structure until 202__. These units will retain their powers in specific regions and localities where temporarily the criminal police are not yet present.

While performing their duties, criminal militia units operate in accordance with the provisions of this Law and other legislative acts, reporting to the respective heads of territorial police bodies.

As the criminal police become operational in regions and localities where their responsibilities are temporarily carried out by criminal militia units, organisational and staffing measures for the dissolution of these units are undertaken by the head of the territorial police body in compliance with the provisions of this Law.

9. Until patrol police units are established, temporarily, until the year 202___, public security militia units are permitted to operate within the police structure, retaining their powers in certain regions and localities where patrol police are not yet present.

10. Until the establishment of pretrial investigation units, temporarily, until the year 202___, Investigative Committee units are permitted to operate within the police structure, retaining their powers.

While performing their duties, Investigative Committee units operate in accordance with the provisions of this Law and other legislative acts, reporting to the respective heads of territorial police bodies.

As pretrial investigation units become operational in regions and localities where their responsibilities are temporarily carried out by Investigative Committee units, organisational and staffing measures for the dissolution of these units are undertaken by the head of the territorial police body in compliance with the provisions of this Law.

7. Until the establishment of security police units, temporarily, until the year 202___, internal affairs security units are permitted to operate within the police structure, retaining their powers in areas where security police units are not yet present.

While performing their duties, internal affairs security units operate in accordance with the provisions of this Law and other legislative acts, reporting to the respective heads of territorial police bodies.

As security police units become operational in regions and localities where their responsibilities are temporarily carried out by internal affairs security units, organisational and staffing measures for the dissolution of these units are undertaken by the head of the territorial police body in compliance with the provisions of this Law.

12. Police officers are permitted to wear and use uniforms established for officers of the militia or the Investigative Committee until the Government of the Republic of Belarus approves new samples of the uniform for police officers and supplies them under the established procedure in accordance with established norms.

13. Until the year 202__, the police may continue using badges, documents, seals, and emblems of the militia, Ministry of Internal Affairs of the Republic of Belarus, and Investigative Committee of the Republic of Belarus.

Article 57. Entry into Force of This Law

1. This Law enters into force six months after its official publication, except for this article and Articles 55 and 56, which enter into force on the date of its official publication.

2. Until legislation is aligned with this Law, existing legal acts remain applicable where they do not contradict this Law, unless otherwise stipulated by the Constitution of the Republic of Belarus.